

SH01

Return of allotment of shares

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☒ **What this form is for**
You may use this form to give
notice of shares allotted following
incorporation.

☐ **What this form is NOT for**
You cannot use this form to give
notice of shares taken
on formation of the company
for an allotment of a new
share by an unlimited

WEDNESDAY



A18 *A6GDDMPK* 04/10/2017 #168
COMPANIES HOUSE

1 Company details

Company number 09965297

Company name in full ALPHA FMC TOPCO LIMITED

→ **Filling in this form**
Please complete in typescript or in
bold black capitals.

All fields are mandatory unless
specified or indicated by *

2 Allotment dates

From Date 02 10 2017
To Date

① **Allotment date**
If all shares were allotted on the
same day enter that date in the
'from date' box. If shares were
allotted over a period of time,
complete both 'from date' and 'to
date' boxes.

3 Shares allotted

Please give details of the shares allotted, including bonus shares.
(Please use a continuation page if necessary.)

② **Currency**
If currency details are not
completed we will assume currency
is in pound sterling.

Currency ②	Class of shares (E.g. Ordinary/Preference etc.)	Number of shares allotted	Nominal value of each share	Amount paid (including share premium) on each share	Amount (if any) unpaid (including share premium) on each share
	See continuation page				

If the allotted shares are fully or partly paid up otherwise than in cash, please
state the consideration for which the shares were allotted.

Continuation page
Please use a continuation page if
necessary.

Details of non-cash
consideration.

If a PLC, please attach
valuation report (if
appropriate)

We hereby certify that this is a
true and correct copy of the original
Dated 20 OCTOBER 2017

CHFP025
06/16 Version 6.0 Laserform International 6/16

SQUIRE PATTON BOGGS (UK) LLP
7 DEVONSHIRE SQUARE
LONDON
EC2M 4YH

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Statement of capital

Complete the table(s) below to show the issued share capital at the date to which this return is made up.

Complete a separate table for each currency (if appropriate). For example, add pound sterling in 'Currency table A' and Euros in 'Currency table B'.

Please use a Statement of Capital continuation page if necessary.

Currency Complete a separate table for each currency	Class of shares E.g. Ordinary/Preference etc.	Number of shares	Aggregate nominal value (£, €, \$, etc) Number of shares issued multiplied by nominal value	Total aggregate amount unpaid, if any (£, €, \$, etc) Including both the nominal value and any share premium
Currency table A	SEE CONTINUATION PAGE			
	Totals			
Currency table B				
	Totals			
Currency table C				
	Totals			
		Total number of shares	Total aggregate nominal value ①	Total aggregate amount unpaid ①
Totals (including continuation pages)		501031591	£50,003.357955	£0.00

① Please list total aggregate values in different currencies separately. For example: £100 + €100 + \$10 etc.

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Statement of capital (prescribed particulars of rights attached to shares)

Please give the prescribed particulars of rights attached to shares for each class of share shown in the share capital tables in Section 4.

Class of share

Prescribed particulars

1

SEE CONTINUATION PAGES

Class of share

Prescribed particulars

1

Class of share

Prescribed particulars

1

1 Prescribed particulars of rights attached to shares

The particulars are:

- a particulars of any voting rights, including rights that arise only in certain circumstances;
- b particulars of any rights, as respects dividends, to participate in a distribution;
- c particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and
- d whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder.

A separate table must be used for each class of share.

Continuation page

Please use a Statement of Capital continuation page if necessary.

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Signature

I am signing this form on behalf of the company.

Signature

Signature

X



X

This form may be signed by:

Director 2, Secretary, Person authorised 3, Administrator, Administrative receiver, Receiver, Receiver manager, CIC manager.

2 Societas Europaea

If the form is being filed on behalf of a Societas Europaea (SE) please delete 'director' and insert details of which organ of the SE the person signing has membership.

3 Person authorised

Under either section 270 or 274 of the Companies Act 2006.

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Return of allotment of shares



Presenter information

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name MB17/CAE.005-0004

Company name Squire Patton Boggs (UK) LLP

Address 7 Devonshire Square

Post town London

County/Region

Postcode E C 2 M 4 Y H

Country England

DX 136546 Bishopsgate 2

Telephone +44 (0)20 7655 1000



Checklist

We may return the forms completed incorrectly or with information missing.

Please make sure you have remembered the following:

- ☐ The company name and number match the information held on the public Register.
- ☐ You have shown the date(s) of allotment in section 2.
- ☐ You have completed all appropriate share details in section 3.
- ☐ You have completed the relevant sections of the statement of capital.
- ☐ You have signed the form.



Important information

Please note that all information on this form will appear on the public record.



Where to send

You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below:

For companies registered in England and Wales:
The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ.
DX 33050 Cardiff.

For companies registered in Scotland:
The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF.
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post).

For companies registered in Northern Ireland:
The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG.
DX 481 N.R. Belfast 1.



Further information

For further information please see the guidance notes on the website at www.gov.uk/companieshouse or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.gov.uk/companieshouse

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Please give details of the shares allotted, including bonus shares.

2 Currency
If currency details are not completed we will assume currency is in pound sterling.

[illegible]

ALIFRAME

SH01

Return of allotment of shares



Presenter information

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name MB17/CAE.005-0004

Company name Squire Patton Boggs (UK) LLP

Address 7 Devonshire Square

Post town London

County/Region

Postcode E C 2 M 4 Y H

Country England

DX 136546 Bishopsgate 2

Telephone +44 (0)20 7655 1000



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Crown Way, Cardiff, Wales, CF14 3UZ.
DX 33050 Cardiff.

For companies registered in Scotland:
The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF.
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post).

For companies registered in Northern Ireland:
The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG.
DX 481 N.R. Belfast 1.



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This form is available in an alternative format. Please visit the forms page on the website at www.gov.uk/companieshouse

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Complete the table below to show the issued share capital. Complete a separate table for each currency.

Currency Complete a separate table for each currency	Class of shares E.g. Ordinary/Preference etc.	Number of shares	Aggregate nominal value (£, €, \$, etc) Number of shares issued multiplied by nominal value	Total aggregate amount unpaid, if any (£, €, \$, etc) Including both the nominal value and any share premium
GBP	A SHARES	294490000	2,944.90	
GBP	B1 SHARES	48695000	486.95	
GBP	B2 SHARES	35600000	356.00	
GBP	C1 SHARES	60995000	609.95	
GBP	C2 SHARES	25775000	257.75	
GBP	D SHARES	45000	45,000.00	
GBP	F SHARES	34130000	341.30	
GBP	PREFERENCE SHARES	1301591	6.507955	
Totals		501031591	£50,003.357955	£0.00

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Statement of capital (prescribed particulars of rights attached to shares)

Class of share	A SHARES	
Prescribed particulars	(A) Subject to articles 7.1.4, 7.1.5 and 7.4 of the Company's articles and to any rights or restrictions for the time being attached to any class or classes of shares: - the A shares and the D shares (the "Voting Ordinary Shares") shall entitle any holder thereof to receive notice of, and to attend and speak, at any general meeting and on a poll each Voting Ordinary Share shall carry one vote; - the holders of the A shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of D shares pursuant to article 7.1.3(c) of the Company's articles and where there is more than one holder of A shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A shares that his holding of A shares bears to the total number of A shares in issue; In relation to any resolution proposed to remove any Director appointed pursuant to article 44 of the Company's articles, the A shares voting on such resolution shall carry such number of votes as is required to defeat the resolution. In addition to any other approval required by law or the Company's articles, those matters set out in Part 2 of the Schedule of the Company's articles shall require prior approval by A Shareholder Consent (as defined in the Company's articles). (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the A shares and the other classes of Equity Shares (as defined in the Company's articles) (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares. [Continues next page]	

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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	A SHARES (CONT)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (each as defined in the Company's articles) (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement (as defined in the Company's articles) or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent (as defined in the Company's articles)) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	

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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	B1 SHARES	
Prescribed particulars	(A) The holders of B1 shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the B1 shares in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action, (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the B1 shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.	

[Continues next page]

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Statement of capital (prescribed particulars of rights attached to shares)

Class of share	B1 SHARES (CONT)
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.

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Statement of capital (prescribed particulars of rights attached to shares)

Class of share	B2 SHARES
Prescribed particulars	(A) The holders of B2 shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the B2 shares in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action. (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the B2 shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.

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Statement of capital (prescribed particulars of rights attached to shares)

Class of share	B2 SHARES (CONTINUED)
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.

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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	F SHARES	
Prescribed particulars	(A) The holders of F shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the F shares in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action, (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the F shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.	

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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	F SHARES (CONTINUED)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	

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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	C1 SHARES	
Prescribed particulars	(A) The holders of C1 shares shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the C1 shares in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; (ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action. (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the C1 shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares.	

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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	C1 SHARES (CONTINUED)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	

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Class of share	C2 SHARES	
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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	C2 SHARES (CONTINUED)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share). (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	

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5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	D SHARES	
Prescribed particulars	(A) Subject to articles 7.1.4, 7.1.5 and 7.4 of the Company's articles and to any rights or restrictions for the time being attached to any class or classes of shares: - the A shares and the D shares (the "Voting Ordinary Shares") shall entitle any holder thereof to receive notice of, and to attend and speak, at any general meeting and on a poll each Voting Ordinary Share shall carry one vote; - the holders of the D shares (as a class) shall be entitled to cast 45% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of D shares the voting rights capable of being cast by the holders of the D shares shall be divided equally amongst all holders of the D Shares in issue. If any act or omission of the Company requires a resolution of the members in general meeting and/or any class consent of the D shares (provided always that the provisions of article 7.1.5(b) of the Company's articles shall only apply in relation to the D shares in the event that article 7.1.6(b) of the Company's articles applies) in terms of the Companies Act 2006 Act (the "Action"), the following provisions shall apply: (i) If the Action requires approval under clause 8.5 of the Investment Agreement and such approval is obtained, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action; [Continues next page]	

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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	D SHARES (CONTINUED)	
Prescribed particulars	(ii) If the Action does not require approval under clause 8.5 of the Investment Agreement, each holder of Equity Shares (other than A shares), deferred shares and/or preference shares shall be deemed to have appointed as his attorney and agent any person nominated by the members representing A Shareholder Consent which person shall have the sole power and authority to exercise all and any voting rights (including, without limitation, voting on any written resolution of the Company's shareholders or voting at any class meeting or on any class consent or written class resolution) attaching to the shares held by him in his name and on his behalf in order to approve and implement the Action. The only acts or omissions of the Company which will require a class consent of the D shares shall be as set out in Schedule Part 7D (Part A) of the Investment Agreement, and such class consent of the D shares may be given by the holders of a majority of the D shares then in issue (excluding any D shares in which any Leaver and/or any Permitted Transferee of any such Leaver holds any interest or to which article 7.4 of the Company's articles applies). If Leavers and/or Permitted Transferees of any Leaver hold interests in all of the D shares or if article 7.4 of the Company's article applies to all of the D shares, article 7.1.6(a) of the Company's articles shall not apply and instead article 7.1.5(b) of the Company's articles shall apply in respect of the D shares. (B) Any profits which the Directors may lawfully determine to distribute in respect of any financial year shall be distributed amongst the holders of the D shares and the other classes of Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares. [Continues next page]	

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Return of allotment of shares

5	Statement of capital (prescribed particulars of rights attached to shares)	
Class of share	D SHARES (CONTINUED)	
Prescribed particulars	(C) The (a) capital and assets of the Company on a winding-up or other return of capital available for distribution to the holders of shares or (b) proceeds of any Share Sale or of any Drag Sale (as the case may be) in respect of the shares being sold (in either case after the payment of any sums due in respect of the preference shares pursuant to clause 23 of the Investment Agreement or article 7.2.2 or article 7.2.3 of the Company's articles (as the case may be)), shall be distributed/shared amongst (aa) in the case of article 7.1.2(a) of the Company's articles the holders of the Equity Shares (in respect of their Equity Shares only) pro rata and pari passu as if the Equity Shares constituted a single class of shares or (bb) in the case of article 7.1.2(b) of the Company's articles, the sellers of Equity Shares (in respect of the Equity Shares which they are selling only), pro rata according to the proportion of the total number of Equity Shares being sold by all such sellers in respect of the Share Sale or Drag Sale represented by the number of Equity Shares being sold by each such seller (and on the basis that such Equity Shares rank pari passu as if they constituted a single class of share. (D) Any shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (with Investor Director Consent) shall be authorised to determine the terms, conditions and manner of redemption of such shares.	